

CONTINUED LAND USE HEARING

Monday, August 31, 2026, at 10:00 a.m.

Anne G. Basker Auditorium, 600 NW Sixth Street, Grants Pass, OR 97526

Present: Ron Smith, Chair; Colene Martin, Vice-Chair; and Gary Richardson, Commissioner; Nikole Guzman, Recorder

These are meeting minutes only. Only text enclosed in quotation marks reports a speaker's exact words.

Pursuant to notice through the media and in conformance with the Public Meeting Law, Ron Smith, Chair, reconvened the continued Land Use Hearing at 10:00 a.m. The matter had been continued from August 24, 2026, with the evidentiary record remaining open for additional evidence and testimony.

1. CONTINUED LAND USE HEARING: *(Hearings are conducted in accordance with Josephine County Code Chapter 19.31 - Public Hearings, a copy of which is available from staff.)*

Request for an Appeal objecting to the Director's Decision to Approve a Cannabis Processing Facility with access off Dick George Road; processing site on Tax Lot 314.

Declaration of Potential Conflicts of Interest:

Commissioners Richardson, Martin, and Smith each declared no potential conflict of interest. No Commissioner abstained from the continued hearing.

Scope of Continued Hearing / Planning Clarification:

James Black, Josephine County Planning Director, clarified that the question before the Board was whether to approve or deny the farm crop processing facility under the review criteria contained in the staff report. He stated that the continued hearing concerned the processing facility and the three 40-foot containers used for that operation, rather than the broader cultivation operation or general water use on the farm.

Chair Smith stated that the prior hearing had proceeded through the evidentiary presentations and rebuttal. Planning reported that no new written information had been received as of the preceding Friday. The Chair offered each side five minutes to present any new information; neither side presented new information at that point, and the Board proceeded to deliberation.

Board Deliberation / Proposed Additional Conditions:

Commissioner Richardson asked Planning to address possible additional conditions that had been discussed at the August 24 hearing. Planning explained that Josephine County Code requires at least 25 percent of the material processed at a farm crop processing facility to originate from the subject farm. The Board clarified that the requirement concerns the source of the material being processed, not the percentage of the subject property crop that must be processed. Planning stated that existing OLCC tracking information and the County annual compliance process could be used to verify compliance without creating a separate reporting system.

The Board also discussed a condition confirming that no water would be used in the manufacturing or processing operation. Planning stated that the processing proposal is a dry process and that such a condition could be imposed. The discussion clarified that the condition would address water used for manufacturing/processing and would not prohibit water needed for an emergency or other lawful safety purpose.

Commissioner Richardson further asked whether commercial activity associated with the processing facility could be required to use Dick George Road rather than Greenview Road. Planning stated that such an access condition was within the Board's authority. Neil Burgess, Josephine County Engineer, advised that two access permits from Dick George Road had originally been issued in 2017, had expired, and were extended for purposes of this application. Public Works deemed the Dick George Road access permits acceptable for the proposed processing facility.

Commissioner Martin acknowledged the concerns expressed by neighboring property owners during the appeal regarding odor, property values, quality of life, neighborhood relations, screening, and other impacts. She stated that the Board was obligated to apply the applicable law and County ordinances to the application. Commissioner Martin requested an additional condition requiring carbon filtration for the processing operation.

Planning summarized the four additional conditions discussed by the Board: (1) at least 25 percent of the material processed at the facility must originate from Tax Lot 314; (2) no water shall be used for manufacturing/processing at the facility; (3) access for commercial activity associated with the processing facility shall be limited to Dick George Road and not Greenview Road; and (4) carbon filters shall be required for the processing facility.

Additional Neighbor Testimony / Owner-Applicant Response:

A neighboring Greenview Road resident who had testified at the prior hearing asked whether the Commissioners had visited the area and reiterated concerns about expansion of cultivation, water demand, and traffic. Chair Smith stated that he had not been able to make a site visit during the intervening week and had instead reviewed the property and surrounding homes using Google Earth.

The owner/applicant representative responded that the use of hoop houses and potted plants was intended to improve management efficiency and was not expected to increase water use; he stated the licensed canopy area remained within OLCC limits. He further stated that the operation did not use Greenview Road for routine access and that the Greenview access had only been used for emergency purposes. The Board again distinguished the existing cultivation operation from the processing-facility application before it.

Decision:

Planning Director Black restated that the Board could approve or deny the farm processing facility and, if approved, could add the four conditions discussed during the hearing to the conditions already contained in Exhibit N. He stated that Planning staff would prepare the written findings and final decision for subsequent Board review and approval.

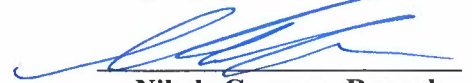
Commissioner Richardson moved to affirm the Planning Department's approval of the farm crop processing facility subject to the conditions of approval in Exhibit N and the four additional conditions stated by Planning Director James Black during the August 31, 2026 hearing. The motion was seconded. Upon roll call: Commissioner Richardson - Yes; Commissioner Martin - Yes; Commissioner Smith - Yes. Motion carried 3-0.

The Board directed Planning staff to prepare the written findings and final decision consistent with the Board's action for return to the Board. The Board's action affirmed the Planning Director's approval as modified by the additional conditions.

Close Hearing:

Chair Smith closed the continued Land Use Hearing and adjourned the meeting at 10:29 a.m.

Meeting adjourned at 10:29 a.m.


Nikole Guzman, Recorder***HEARING RECORD:***

The evidentiary record, staff report, Exhibit N conditions of approval, and exhibits admitted during the August 24, 2026 hearing remained part of the record considered at the August 31, 2026 continuation. No new written evidence was reported received as of the Friday preceding the continued hearing.